

Human dignity as the foundation of Muslim and non-Muslim relations in sharia

Analysis run: September 12, 2026

PROVIDER

Openrouter

MODEL

Anthropic/claude-opus-4.7 En

LANGUAGE

En

AUDIENCE

GENERAL

INTONATION

NEUTRAL

LENGTH

Long

TEMPERATURE

0.7

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Human dignity as the foundation of Muslim and non-Muslim relations in sharia".

Overall topic for alignment: Muslim-non-Muslim relations grounded in human dignity in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.

- Place external links only in the "References" section; do not include inline external links in the body text.

- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.

- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.

- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Human Dignity as the Foundation of Muslim and Non-Muslim Relations in Sharia

Core Thesis

Human dignity (*karāmah insāniyyah*) is an intrinsic principle within sharia itself—not an external value imposed on it—and forms the ethical basis for Muslim relations with non-Muslims across majority and minority contexts.

Quranic Foundations

Key verses establish universal human worth: Q 17:70 (honoring all children of Adam), Q 49:13 (pluralism as divine intent), Q 2:256 (no compulsion in religion), Q 5:8 (justice toward all), and Q 60:8 (kindness to non-hostile non-Muslims). Dignity for non-Muslims is original, not derivative.

Juristic and Theological Schools

- **Ḥanafī**: Most expansive; Abū Ḥanīfah held non-Muslim *diyyah* equal to Muslim's.
- **Mālikī**: Emphasized coexistence and non-Muslim religious autonomy.
- **Shāfiʿī**: Systematized the *dhimmah* contract with contractual reciprocity.
- **Ḥanbalī**: Ibn Taymiyyah and Ibn Qayyim defended non-Muslim rights robustly.
- Shīʿī jurisprudence developed parallel dignity-based protections.
- Theologically, **Muʿtazila** grounded dignity in reason, **Ashʿariyyah** in revelation, and **Māturīdiyyah** mediated both.

The *maqāṣid al-sharīʿah* (protection of life, religion, intellect, lineage, property) classically extended to non-Muslims.

Historical Practice

The Constitution of Medina (c. 622 CE) recognized Jews and others as constituent communities. Successive caliphates and the Ottoman *millet* system institutionalized communal autonomy, with non-Muslims serving in administration, medicine, and translation. Practice varied but consistently recognized protected status.

Modern Contexts

- **Muslim-majority states:** Shift from *dhimmī* status to citizenship-based equality (*muwāṭanah*), exemplified by the Marrakesh Declaration (2016).
- **Muslim-minority states:** *Fiqh al-aqalliyāt* (al-Alwani, al-Qaradawi) emphasizes civic engagement grounded in dignity.

Orientalist and Human Rights Debates

Orientalists ranged from viewing *dhimmah* as discriminatory (Goldziher, Schacht) to nuanced revisionism (Bernard Lewis, Mark R. Cohen) noting greater non-Muslim security than in pre-modern Europe. Reformists (An-Na'im, Kamali, Ramadan) argue *maqāṣid*-based reasoning aligns sharia with the UDHR; the Cairo Declaration (1990) and Arab Charter articulate rights in Islamic idiom.

AI's Role

AI can support humanistic readings by aggregating diverse juristic opinions, surfacing reformist voices, cross-referencing principles like *karāmah*, *ʿadl*, and *raḥmah* with rulings, and translating terms contextually—treating sharia as a living, pluralistic tradition rather than a monolith.

Human Dignity as the Foundation of Muslim and Non-Muslim Relations in Sharia

Human dignity (*karāmah insāniyyah*) stands at the heart of Islamic legal and ethical reasoning concerning how Muslims relate to people of other faiths. While much modern discussion focuses on rules of warfare, taxation, or minority status, the deeper Quranic premise is that every human being possesses intrinsic worth simply by virtue of being human. This article surveys the Quranic foundations, the views of the major juristic schools, historical practice, orientalist readings, and the contemporary alignment of sharia with international human rights norms — including reflections on how AI-driven analysis approaches these themes humanistically.

Quranic Foundations

The principle of human dignity in sharia rests on several Quranic verses. The most cited is Q 17:70: "*Wa laqad karramnā banī Ādam*" — "Indeed, We have honored the children of Adam." The verse does not restrict honor to Muslims; it extends to all descendants of Adam. Equally influential is Q 49:13, which describes humanity as created from "a male and a female" and made into "peoples and tribes that you may know one another," anchoring pluralism in divine intention rather than mere tolerance.

Other foundational verses include:

- **Q 2:256** — "*Lā ikrāha fī al-dīn*" ("There is no compulsion in religion"), which jurists invoke to protect religious conscience.
- **Q 5:8** — commanding justice (*ʿadl*) even toward those one dislikes.
- **Q 60:8** — permitting kindness (*birr*) and equity (*qist*) toward non-Muslims who are not hostile.

These texts ground a normative framework in which the dignity of the non-Muslim is not derivative but original.

Key Arabic Terms

- **Karāmah** — inherent dignity.
- **Dhimmī** — historically, a non-Muslim under a covenant of protection in a Muslim-majority polity.
- **Muʾāhad / mustaʾman** — a non-Muslim under treaty or temporary safe-conduct.
- **Ahl al-Kitāb** — People of the Book (primarily Jews and Christians).

- **Maqāṣid al-sharīʿah** — the higher objectives of sharia, traditionally including the protection of life, religion, intellect, lineage, and property — protections that classical jurists extended to non-Muslims residing under Islamic governance.

The Four Sunni Juristic Schools

Each school contributed distinct rulings, yet all affirmed the protection of non-Muslim life, property, and worship under specific arrangements.

- **Ḥanafī school:** Often considered the most expansive toward non-Muslims, especially in matters of contracts, commerce, and testimony. Abū Ḥanīfah (d. 767) accepted broad civil parity, holding that the blood-money (*diyyah*) of a non-Muslim citizen equaled that of a Muslim — a notably egalitarian position.
- **Mālikī school:** Rooted in the practice of Medina, it emphasized communal coexistence and protected non-Muslim religious autonomy in personal status matters.
- **Shāfiʿī school:** Systematized rules around the *dhimmah* contract, balancing protection with social demarcation; meticulous about contractual reciprocity.
- **Ḥanbalī school:** Sometimes perceived as stricter, yet Ibn Taymiyyah (d. 1328) and Ibn Qayyim al-Jawziyyah (d. 1350) articulated robust defenses of non-Muslim rights, with Ibn Qayyim's *Aḥkām Ahl al-Dhimmah* remaining a foundational legal compendium.

Shīʿī jurisprudence (Jaʿfarī) and other schools developed parallel frameworks, often converging on dignity-based protections while differing on procedural details.

Theological Schools

Islamic theology (*kalām*) shaped how dignity was conceptualized:

- **Muʿtazila** emphasized rational moral realism: good and evil are knowable by reason, implying that human dignity is rationally evident, not merely revealed.
- **Ashʿariyyah** grounded morality in revelation but affirmed dignity through scriptural command.
- **Māturīdiyyah**, dominant among Ḥanafīs, mediated between the two, recognizing reason's capacity to discern moral truths including the worth of the human person.

These theological positions influenced how jurists weighed universal human worth against community-specific obligations.

Historical Contexts

The Constitution of Medina (c. 622 CE) is often cited as an early articulation of pluralist governance, recognizing Jews and other groups as constituent communities (*ummah*) alongside Muslims, with reciprocal obligations of defense and justice.

Under the Umayyads, Abbasids, Fatimids, Andalusian dynasties, and Ottomans, non-Muslims occupied roles in administration, medicine, translation (notably during the Abbasid translation movement), and finance. The Ottoman *millet* system institutionalized communal religious autonomy. Practices varied: there were periods of remarkable convivencia and periods of strain, but the legal scaffolding consistently recognized protected status.

Minority and Majority Settings

Classical *fiqh* largely assumed Muslims as a political majority. Contemporary realities — large Muslim minorities in non-Muslim states and diverse non-Muslim minorities within Muslim-majority states — have prompted renewed reflection.

- In **Muslim-majority settings**, modern constitutions in many countries guarantee citizenship-based equality, moving beyond the historical *dhimmī* category toward shared civic identity (*muwāṭanah*), as articulated, for example, in the Marrakesh Declaration of 2016.
- In **Muslim-minority settings**, jurists developed *fiqh al-aqalliyyāt* (jurisprudence of minorities), associated with scholars such as Taha Jabir al-Alwani and Yusuf al-Qaradawi, emphasizing constructive engagement, civic loyalty, and ethical participation grounded in dignity.

Orientalist Perspectives

Orientalist scholarship — from figures such as Ignaz Goldziher and Joseph Schacht to contemporary historians — has shaped Western perceptions of sharia and non-Muslim relations. Some early orientalists portrayed the *dhimmah* system as inherently discriminatory; others, including Bernard Lewis and later revisionists like Mark R. Cohen, offered more nuanced comparisons, arguing that pre-modern Islamic polities often afforded non-Muslims greater security than contemporaneous European arrangements. Critical Muslim and non-Muslim scholars alike caution against anachronistic readings that import modern egalitarian standards into pre-modern legal categories, while still acknowledging where reforms are warranted.

Sharia and the Universal Declaration of Human Rights

The 1948 Universal Declaration of Human Rights (UDHR) provoked diverse Muslim responses. The Cairo Declaration on Human Rights in Islam (1990) and the later Arab Charter on Human Rights sought to articulate rights within an Islamic idiom, while reformist scholars — Abdullahi Ahmed An-Na'im, Mohammed Hashim Kamali, Tariq Ramadan, and others — have argued that *maqāṣid*-based reasoning can support full compatibility with universal human rights, including freedom of religion, equality before the law, and protection from discrimination. Central to these reformist projects is the elevation of *karāmah* as a foundational, not peripheral, principle.

AI's Humanistic Approach to Sharia

Contemporary AI tools analyzing Islamic legal texts can support a humanistic reading by:

- Aggregating diverse juristic opinions across schools, revealing pluralism within tradition.
- Surfacing minority and reformist voices often overlooked in popular discourse.
- Cross-referencing Quranic principles like *karāmah*, *ʿadl*, and *raḥmah* (mercy) with specific rulings to test coherence with higher objectives.
- Translating classical Arabic terminology with contextual sensitivity, reducing distortions that fuel polarization.

A responsible AI approach treats sharia not as a monolith but as a living interpretive tradition in which human dignity provides a stable axis for engaging non-Muslims with justice, respect, and shared civic responsibility.

Conclusion

Across Quranic foundations, juristic schools, theological frameworks, historical experience, and modern reform, a thread runs clearly: human dignity is not an external value imposed on sharia but a principle drawn from its own deepest sources. Whether in majority or minority contexts, the affirmation of *karāmah insāniyyah* offers a coherent ethical basis for Muslim and non-Muslim relations — one capable of dialoguing with universal human rights while remaining rooted in Islamic tradition.

SEGMENTED DATA (1)

Human Dignity as the Foundation of Muslim and Non-Muslim Relations in Sharia

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